

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Catherine McCaw	Team: Team # 4	CCRB Case #: 200507325	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 06/28/2005 4:05 PM	Location of Incident: Schenck St. between Liberty Ave. and Glenmore Ave., Brooklyn	18 Mo. SOL 12/28/2006	Precinct: 75		
Date/Time CV Reported Tue, 06/28/2005 5:02 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 06/28/2005 5:02 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Langlois	26882	930529	075 PCT
2. POM Vincent Fontana	15144	931673	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Jennery Rios	04371	918219	075 PCT
2. POM Allan Cruz	12930	899095	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Langlois	Abuse: PO Michael Langlois stopped and questioned § 87(2)(b)	A . Substantiated
B . POM Vincent Fontana	Abuse: PO Vincent Fontana stopped and questioned § 87(2)(b)	B . Substantiated
C . POM Vincent Fontana	Abuse: PO Vincent Fontana searched § 87(2)(b)	C . Substantiated
D . POM Michael Langlois	Abuse: PO Michael Langlois searched § 87(2)(b)	D . Substantiated
§ 87(2)(g), § 87(4-b)		

Synopsis

On June 28, 2005, at approximately 4:05 PM, § 87(2)(b) was stopped by PO Michael Langlois and PO Vincent Fontana on Schenck St. between Liberty Ave. and Glenmore Ave. in Brooklyn (Allegations A and B). Both officers were assigned to a 75 Pct. SNEU operation and had learned from another officer that an individual who fit § 87(2)(b) description had recently left what the officers described as a “crack house.” PO Fontana searched § 87(2)(b) bag (Allegation C), while PO Langlois searched his person and instructed him to remove his socks and shoes (Allegation D). The officers did not find narcotics, and § 87(2)(b) was released without summons or arrest.

§ 87(2)(g) . It is recommended that allegations A and B be substantiated. § 87(2)(g) It is also recommended that allegations C and D be substantiated. § 87(2)(g), § 87(4-b)

Summary of Complaint

§ 87(2)(b) a § 87(2)(b) black § 87(2)(b), filed a complaint with the CCRB on June 28, 2005. He also filed a complaint with IAB. § 87(2)(g). § 87(2)(b) gave an official statement on July 13, 2005. § 87(2)(g)

§ 87(2)(b) stated that on June 28, 2005, at approximately 4:05 PM, he was walking home from the subway after work. He was carrying a black knapsack and wearing khaki carpenter shorts, a white T-shirt with stripes across the chest and sneakers. As he was walking on Schenck St. between Liberty Ave. and Glenmore Ave., a marked police car pulled up beside him, and an officer, subsequently identified as PO Michael Langlois, asked § 87(2)(b) to walk up next to the car. § 87(2)(b) asked the officers why they were stopping him, and PO Langlois told him that an officer had seen him buying drugs. PO Langlois told him that he was going to search § 87(2)(b). § 87(2)(b) responded that he did not give the officers his permission to search him, and PO Langlois stated that he did not need § 87(2)(b) permission.

Both officers put on gloves. PO Langlois frisked and searched § 87(2)(b) while PO Vincent Fontana, PO Langlois’ partner, began to search his knapsack. PO Langlois first patted his hands down § 87(2)(b) shirt and pulled up the shirt to view § 87(2)(b) chest. When PO Langlois pulled up the shirt, he noticed that § 87(2)(b) fly was open and asked § 87(2)(b) why it might be open. § 87(2)(b) stated that he must have forgotten to close it. PO Fontana was looking through § 87(2)(b) knapsack at the time. He saw § 87(2)(b) uniform in the main pocket of the knapsack. He asked § 87(2)(b) whether he had changed recently, attempting to account for § 87(2)(b) unzipped fly. § 87(2)(b) confirmed that he had. PO Langlois looked in his right front pocket, pulling out a cellular telephone, some keys and some gum. He also pulled § 87(2)(b) wallet out of his right back pants pocket and went through its contents, looking for § 87(2)(b) identification. § 87(2)(b) informed PO Langlois that he kept his identification with an officer’s courtesy badge in his left back pocket. After searching § 87(2)(b) pockets, PO Langlois placed § 87(2)(b) wallet and courtesy badge on the hood of the car and instructed him to remove his left shoe. PO Langlois looked inside of § 87(2)(b) shoe and rolled down § 87(2)(b) sock halfway down his foot so that the top of the sock was touching § 87(2)(b) big toe. He then repeated this process with the right shoe. After he was finished, PO Langlois allowed § 87(2)(b) to put his shoes and socks back on. § 87(2)(b) bent down to do so. As § 87(2)(b) was putting his right shoe back on, PO Langlois felt the inside of his underwear band. The officers did not find any drugs.

After § 87(2)(b) was finished putting on his shoes, he stood up and asked PO Langlois who had seen him purchasing drugs. PO Langlois responded that he could not reveal that information. He told § 87(2)(b) “We’re not living in the neighborhood. You do. We’re just trying to clean up the neighborhood. If we’re correct, then that’s a good thing. If we’re wrong, then I apologize.” He then drove away. Immediately

after the officers departed (at precisely 4:09 PM according to § 87(2)(b) cellular telephone), § 87(2)(b) called 911 to file a complaint. He filed a complaint with the CCRB approximately one hour later.

Results of Investigation

Officer Identification

Shortly after § 87(2)(b) called IAB, he saw a car in the neighborhood that he believed to be occupied by the subject officers. He provided this car's vehicle number, 2688, to the CCRB. IAB was unable to locate this vehicle in the fleet services database. PO Michael Langlois and PO Vincent Fontana were assigned to a SNEU team and working in the "catch car" on the date and time of incident. PO Fontana has memo book entries for the approximate time of incident that list him as being present in the area. In addition, PO Langlois stated during his November 29, 2005 CCRB statement that he was present during the incident. PO Langlois stated that he took the lead in speaking with § 87(2)(b) § 87(2)(g)

Officer Statements

PO Michael Langlois

PO Langlois was interviewed by the CCRB on November 29, 2005. He stated that he has lost his memo book for the day. He stated that at approximately 4:05 PM, he was working in the catch car of a SNEU operation with PO Vincent Fontana. He received a description from the observation post officer, subsequently identified as PO Allan Cruz, of an individual who had been seen coming from "a drug prone location." PO Langlois specified that the individual was "coming out of a crack house." He could no longer recall the description of this individual. PO Langlois stated that they stopped an individual, subsequently identified as § 87(2)(b) who fit the description provided to them. He could not recall how many other people were on the street when they stopped § 87(2)(b) PO Langlois, who took the lead in speaking to § 87(2)(b) informed him of why they were stopping him and began to search him. § 87(2)(b) § 87(2)(b) "became very belligerent and started cursing," saying, "Why are you fucking touching me?" He also informed the officers that he was a § 87(2)(b) and stated that his uniform was in his bag. PO Langlois looked in his bag, saw the uniform and then returned the bag to § 87(2)(b) He did not look beyond the main pocket. PO Langlois denied that he searched § 87(2)(b) shoes and socks, stating, "Once we saw his uniform, we stopped everything." PO Langlois explained that he stopped his investigation not because he felt that the uniform was conclusive evidence that the individual was not buying drugs, but because he and PO Fontana had not recovered any narcotics. § 87(2)(b) continued to curse and yell. He asked PO Langlois for his name and shield number, and PO Langlois provided this information.

PO Vincent Fontana

Memobook: "1530 v/o Jamaica & Hendrix. 1715 v/o Highland & Miller." It should be noted that the intersection of Jamaica Ave. and Hendrix St. is approximately five blocks away from the incident location.

CCRB Statement. PO Fontana was interviewed by the CCRB on December 8, 2005. He did not recall the incident.

Additional Officer Statements

Sgt. Jennery Rios, the supervisor for this SNEU team, was interviewed by the CCRB on January 27, 2006. PO Allan Cruz, the observation post officer, was interviewed, on February 2, 2006. Neither officer had any recollection of this incident, nor could either officer recall the description that PO Cruz reportedly transmitted over the radio that led to the stop of § 87(2)(b)

Police Documents

911 Call

The SPRINT index obtained from both the Communications Division and from MAS did not list any jobs generated between 1343 and 1718 for the sector that covers the incident location. § 87(2)(g)

§ 87(2)(b) telephone call occurred during this time period and appears to have been lost.

Stop and Frisk Log

According to the 75 Pct. stop and frisk log, neither PO Fontana nor PO Langlois filed a single stop and frisk report on June 28, 2005.

Civilian and Officer Histories

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)] Neither of the officers in this case have any substantiated CCRB allegations.

Conclusions and Recommendations

Disputed and Undisputed Facts

It is not in dispute that PO Vincent Fontana and PO Michael Langlois stopped § 87(2)(b) searched him and searched his bag. PO Langlois denied that he instructed § 87(2)(b) to remove his shoes and socks.

Credibility

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Allegation A: PO Michael Langlois stopped and questioned § 87(2)(b)

Allegation B: PO Vincent Fontana stopped and questioned § 87(2)(b)

PO Langlois § 87(2)(g)
§ 87(2)(g)
§ 87(2)(b) stated that he and PO Fontana stopped § 87(2)(b) because he was coming from a “drug prone location,” specifically what the PO Langlois described as a crack house. § 87(2)(g)

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b). Barry Kamins observes in *New York Search and Seizure Law*, “If innocuous behavior is found to have occurred in a *high crime area*, that fact alone will *not* provide the officer with a reasonable suspicion that the defendant is committing a crime.”

§ 87(2)(g)

§ 87(2)(b) It is recommended that these allegations be *substantiated*.

Allegation C: PO Vincent Fontana searched § 87(2)(b)

According to § 87(2)(b) PO Fontana, the officer who was not taking the lead, searched his backpack. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) It is recommended that this allegation be *substantiated*.

Allegation D: PO Michael Langlois strip-searched § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b). The Patrol Guide specifies in procedure 208-05 that certain types of searches are appropriate to conduct in the field, while others must be conducted in the stationhouse. It specifies that when a person is under arrest, “A thorough external body examination is made by sliding the hand over the subject’s body, feeling for weapons or other objects, with special attention to the waistband, armpit, collar, and groin areas. If an unusual object is detected, the officer will reach into or under the clothing to remove it.” The patrol guide goes on to specify that an officer search an individual’s shoes and socks in the stationhouse. This type of search is not appropriate for the field, however, where a suspect lacks security and privacy. Instructing a suspect to remove his shoes and socks on the street might even prove dangerous to the suspect.

§ 87(2)(g)

§ 87(2)(b). It is recommended that this allegation be *substantiated*.

§ 87(2)(g), § 87(4-b)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: